

104	Barraza vs. Alta Newport Hospital, LLC 2023-01304199	Final Accounting The Final Accounting hearing is CONTINUED to July 23, 2026 at 2:00 p.m. in Department CX102 to confirm that the amount of the uncashed checks after the check-cashing deadline has been delivered to the State Controller’s Office Unclaimed Property Fund in the names of the applicable payees, that the administrator’s work is complete, and that the Court’s file thus may be closed. All supporting papers must be filed at least sixteen (16) court days before the continued hearing date. Plaintiff is ordered to give notice of this ruling to Defendant.
105	Fierro vs. 5.11, Inc. 2020-01171395	Final Accounting Plaintiffs Yesenia Fierro and Cherise Morris Eastman’s Final Accounting hearing is CONTINUED to July 23, 2026 at 2:00 p.m. in Department CX102 to confirm that the amount of the uncashed checks after the check-cashing deadline has been delivered to the <i>cy pres</i> recipient, Legal Aid at Work; that the administrator’s work is complete; and that the Court’s file thus may be closed. All supporting papers must be filed at least sixteen (16) court days before the continued hearing date. If a supplemental report cannot be filed by this deadline, counsel must request a continuance. Failure to request a continuance may result in the issuance of an Order to Show Cause re Monetary Sanctions. As the administrator attested in its 2/9/2026 declaration, “[p]ursuant to the terms of the Parties’ Settlement Agreement, the total amount associated with the checks that are not cashed, deposited, or otherwise negotiated, after the check cashing deadline, shall be sent to the <i>cy pres</i> recipient, Legal Aid at Work. Upon Court’s Order, ILYM Group shall send \$54,293.61, which is the funds associated with the two hundred ninety-two (292) checks that were not cashed, deposited, or otherwise negotiated, to the <i>cy pres</i> recipient, Legal Aid at Work.” Code of Civil Procedure section 384.5 provides, in relevant part: If a judgment in a class action . . . provides for a distribution of money or any other thing of value to a person or entity that is not a party to the action, the court shall transmit a copy of the order, judgment, or decree to the Judicial Council. The order, judgment, or decree <i>shall contain, at a minimum, the information necessary for the</i>

California Research Bureau to complete the report required by Section 68520 of the Government Code.

(Emphasis added.)

Government Code section 68520, subdivision (a) provides, in relevant part:

On January 1, 2024, and on January 1 of every fifth year thereafter, the California Research Bureau shall prepare and publish on its Internet Web site a report containing information regarding the distribution of money or any other thing of value pursuant to a judgment in a class action . . . if the judgment provides for a distribution to a person or entity that is not a party to the class action. The report shall cover judgments entered in class actions during the five-year period before the date of the filing of the report and shall contain, at a minimum, the following information:

- (1) The name of the case.
- (2) *The cause of action resolved by the judgment, with a summary of the underlying allegations or supporting factual findings.*
- (3) The name of, *and the amount distributed to,* each nonparty person or entity.
- (4) The name of the judge ordering the distribution.
- (5) *The purpose of the distribution to the nonparty person or entity and how the nonparty person or entity plans to expend the funds or proceeds received, if known.*

(Emphases added.)

Here, the judgment the Court previously entered on 5/6/2026 identified the name of the case, the name of the cy pres recipient, and the name of the judge ordering the distribution to the cy pres recipients. (ROA #280.) The judgment does not, however, identify (1) the causes of action resolved by the judgment with a summary of the underlying allegations, (2) the amount to be distributed to the cy pres entity (which, admittedly, could not have been known until after the cash-checking deadline has expired), or (3) the purpose of the distribution to the entity or how the entity plans to expend the funds or proceeds received, if known.

Accordingly, Class Counsel is **ORDERED** to lodge with the Court, within 5 court days of this ruling, a proposed further revised order of final approval and judgment that includes the missing information. (See Code Civ. Proc., 384, subd. (a) [providing for

		amendment of judgment to specify distribution to cy pres recipient].) Upon entry of the amended order of final approval and judgment, the Clerk will transmit a copy to the Judicial Council. Plaintiffs are ordered to give notice of this ruling to Defendants.
106	Barcnas vs. El Toro Meat Shop 2023-01351414	Final Accounting The settlement administrator, Phoenix Settlement Administration, has confirmed that the distribution of the settlement funds has been completed and made in accordance with the terms of the settlement that were approved by the Court. As Plaintiff has shown that the administrator's work is complete, the Court's file may now be closed. Plaintiff is ordered to give notice of this ruling to Defendant.
107	VALDES IBANEZ vs. ANCHOR INTERNATIONAL SECURITY 2024-01385083	1. Case Management Conference 2. Motion for Leave to File Amended Complaint Plaintiff Francisco Alfonso Valdes Ibanez's motion for leave to file a second amended complaint ("SAC") is GRANTED. (Code Civ. Proc., §§ 473, subd. (a)(1), 576.; <i>Atkinson v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 761.) The Court continues the CMC to August 13, 2026 at 9:30AM in CX102. A joint CMC statement shall be filed 10 days in advance. 1. Procedural Requirements California Rules of Court (CRC), rule 3.1324 requires that a motion to amend include a copy of the proposed amendment or amended pleading; identify by page, paragraph, and line number any additions to and deletions from the prior pleading; and include a supporting declaration that specifies: (1) The effect of the amendment; (2) Why the amendment is necessary and proper;